

Peraringnar Anna Centenary Co-operative Milk Producers Welfare Fund Rules, 2010

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State of Tamilnadu- Act

Peraringnar Anna Centenary Co-operative Milk Producers Welfare Fund Rules, 2010

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Peraringnar Anna Centenary Co-operative Milk Producers Welfare Fund Rules, 2010

Rule PERARINGNAR-ANNA-CENTENARY-CO-OPERATIVE-MILK-PRODUCERS-WELFARE-FUND-RULES-2010 of 2010

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Peraringnar Anna Centenary Co-operative Milk Producers Welfare Fund Rules, 2010

Published vide Notification No. G.O. Ms. No. 63, Animal Husbandry, Dairying and Fisheries (MP-1), dated 28.04.2010

Last Updated 22nd January, 2020

No. SRO A-14/(a)/2010. - In exercise of the powers conferred by sub-section (1) Section 180 of the Tamil Nadu Co-operative Societies Act, 1983 (Tamil Nadu Act 30 of 1983), the Governor of Tamil Nadu hereby makes the following Rules:-

1.

Short Title and Commencement.

(a)

These rules may be called the "Peraringnar Anna Centenary Co-operative Milk Producers Welfare Fund Rules, 2010".

(b)

They shall come into force on the 28th day of April 2010.

2.

Definitions.

- In these rules, unless the context otherwise requires:-

(a)

"Accident" means a sudden, unintended and fortuitous external and visible event;

(b)

"Act" means the Tamil Nadu Co-operative Societies Act, 1983 (Tamil Nadu Act 30 of 1983);

(c)

"Bank" means any Co-operative Bank or Nationalized Bank;

(d)

"Board" means the Board of Directors or the Special Officer of the Society;

(e)

"Commissioner" means the Commissioner for Milk Production and Dairy Development;

(f)

"Committee" means the committee constituted for the purpose of administration of the fund under rule 17;

(g)

"Co-operative Year" means the period commencing on the first day of April of any year and ending with the 31st day of March of the succeeding year;

(h)

"Dairying" means activities which includes purchase of milch animal, construction of cattle shed, providing of feed/fodder and veterinary health care, milk production, sale of milk to the society, by ensuring food safety and hygienic measures;

(i)

"Deputy Registrar (Dairying)" means the Circle Deputy Registrar (Dairying) having jurisdiction over the Society;

(j)

"Deputy Registrar (Head quarters)" means the Deputy Registrar (Head quarters) of the Dairy Development Department ;

(k)

"Family" means:-

(i)

In the case of a male member, his wife and his un-married dependant Children;

(ii)

In case of female member, her husband and her Unmarried dependant children,

(l)

"Fatal Accident" means death caused by accident;

(m)

"Federation" means Tamil Nadu Co-operative Milk Producers Federation Ltd., registered or deemed to be registered under the Act;

(n)

"Fund" means the Peraringnar Anna Centenary Co-operative Milk Producers Welfare Fund;

(o)

"General Manager" means the General Manager of District Co-operative Milk Producers Union having Jurisdiction over the Society;

(p)

"Government" means the Government of Tamil Nadu;

(q)

"Loyalty" means the milk pouring member should be loyal and patronage to the society and should neither supply milk to the other agencies nor allow his family / dependents to supply milk to other agencies;

(r)

"Member" means member of the society;

(s)

"Member-Secretary" means Deputy Milk Commissioner (Co-operation) of the Dairy Development Department;

(t)

"Milk pouring member" means a member who pours milk to the society for a period of not less than 120 days and 300 litres in the year or previous year whichever is higher;

(u)

"Permanent Partial Disability" means a physician certified total and continuous loss of impairment of body or sensory organ specified in the permanent partial disability;

(v)

"Permanent Total Disability" means a Physician certified total continuous and permanent disability;

(w)

"Physician" means a qualified medical practitioner holding a valid and subsisting license, granted by the appropriate licensing authority and acting within the scope of his license;

(x)

"Rules" means the Tamil Nadu Co-operative Societies Rules, 1988;

(y)

"Society" means Milk Producers Co-operative Society registered under the Tamil Nadu Co-operative Societies Act, 1983 (Tamil Nadu Act 30 of 1983) or a society which has an object of procuring milk from the members and supplying it to the union;

(z)

"Subscriber" means a member, who has been admitted into the fund.

(aa)

"Union" means District Co-operative Milk Producers Union Limited, registered or deemed to be registered under the Act, which are affiliated to the Tamil Nadu Co-operative Milk Producers' Federation Limited.

3.

Objectives of the Fund.

(a)

To support members at the time of distress exigencies, so as to continue them in dairying without any dislocation in the supply of milk to society;

(b)

To encourage members to have loyalty and patronage to society;

(c)

To encourage members to pour more quantity and more quality of milk to society;

(d)

To encourage the members to rear high breed milch animals by creating competitiveness among them.

4.

Constitution of the Welfare Fund.

(a)

The Fund shall be constituted for the benefit of the milk pouring members by the Commissioner for Milk Production and Dairy Development.

(b)

The Committee may, from time to time and at their discretion, decide the number of societies, to which the Fund may be extended having regard to financial and other considerations. The Committee shall also have the right to defer payment of assistance, at their discretion after recording the reasons;

(c)

All contributions to the Fund shall be deducted from the milk bills of the subscribers. No contribution shall be made by cash;

(d)

The subscription and contribution shall be made by the Union only by crossed cheque in the name of the Fund;

(e)

The Fund shall consist of :-

- (i)
Subscription by the subscriber;
- (ii)
Contribution of the society;
- (iii)
Contribution by the Union;
- (iv)
The interest earned on the accumulation of the fund shall become the part of the fund.

5.

Administration of the Fund.

- The Fund shall be administrated by the Committee Constituted under rule 17.

6.

Powers of the committee.

- (a)
The committee shall have the power to admit a society to the Fund;
- (b)
No society can claim admission to this Fund as a matter of right;

(c)

The Committee shall have the right to remove the Society from the fund, provided it fails to fulfill the obligations as per the bye-laws of the society, in supplying of milk to the Union, provided that the committee may, for reasons to be recorded in writing and pass orders to refuse admission of a society to this Fund.

7.

Eligibility of a Member to be admitted as a Subscriber.

- A member of a society may be admitted as a subscriber to the fund if he satisfies the following conditions:-

- (a)
Should be a pouring member on the date of inception of the Fund;

(or)

(b)

A member who subsequent to inception of the Fund shall become subscriber, from the date from which he starts pouring milk to the Society, provided that, that Society is eligible to participate in the Fund.

8.

Admission of member as a Subscriber.

(a)

A member who is eligible as per rule 7 may be admitted by the Board, as a subscriber to the Fund ;

(b)

The Board has the right to refuse the admission of subscriber to the Fund and where it refuses admission, the Board shall record its reason in writing for refusal and pass orders.

9.

Removal of Member from participating to the Fund.

- The Board may remove a member from participation to the Fund on any one or more of the following grounds:-

(a)

If the member -

(i)

becomes disqualified to continue as a member of the society;

(ii)

has been removed from the membership of the society;

(iii)

Withdraws his membership of the society;

(b)

When the member continuously stops pouring milk to the society for the period of 180 days from the date of last supply.

10.

Appeal by aggrieved society or member.

(a)

Any society or member aggrieved by an order of the committee under sub-rule (c) of rule 6 or sub-rule (b) of rule 8 or rule 9 shall make an appeal to the Deputy Registrar (Dairying) within two months from the date of receipt of such order;

(b)

The Deputy Registrar (Dairying) shall dispose of appeal within a period of three months from the date of filing of appeal, after giving reasonable opportunities to the aggrieved society / member to make their representation. The order passed by the Deputy Registrar (Dairying) shall be final.

11.

Subscription and Contribution to the Fund.

(a)

Contribution to the Fund.- Every subscriber shall subscribe to the fund, at the rate of one Rupee per month. The concerned society shall contribute fifty paise and the concerned Union shall contribute fifty paise on behalf of the subscriber.

Explanation. - The subscription of one Rupee per month payable by the subscriber shall be deducted out of the milk bills.

(b)

Mode of subscription:- The union shall get the subscriber's list from the Society every month and deduct the Society share and subscriber share from the milk bill of the Society, and send consolidated amount along with Union share to the fund before 10th of every month.

12.

Stoppage of payment of subscription.

(a)

If the pouring member stops supply of milk to society and owing to this, the subscription for the month shall not be deducted for the month, the payment of subscription from that month gets stopped;

(b)

In the event of subscriber resumes supply of milk to the society within 180 days from the date of stoppage of milk supply, the subscription gets renewed;

Provided that the member agrees to deduct rupees two for every month of discontinuance from the milk bills of the subscriber:

Provided, that the Society or the Union shall not contribute to the matching shares during the non supply period of the subscriber;

(c)

In case, of pouring member stops supply to the society and does not resume milk supply, within 180 days from the date of last supply, his subscription stands lapsed and he forfeits his right for claim of assistance on any eventuality. The subscription gets renewed, provided that the member agrees to deduct rupees twenty five from the future milk bills of the subscriber.

13.

Administration Cost of the Fund.

(a)

The committee shall earmark 3% of the amount outstanding in the fund at the end of March every year, as administrative cost of the fund.

(b)

The administration cost of the fund shall be used for computerisation of accounts, printing of pamphlets and to others, salary amount, meeting expenses, and other miscellaneous expenses.

14.

Maintenance of Accounts.

(a)

An account shall be opened in the name of the Fund in the bank. The General Manager (Finance) of the Federation along with an authorized member of the committee shall operate the Fund and maintain separate account for the same:

Provided that he shall not incur any expenditure without prior sanction of the Committee or the Chairman, as the case may be.

(b)

The committee shall control the accounts relating to the Fund, deposits, withdrawals and mode of investments in the bank. All the remittance should be in the name of the Fund.

(c)

It shall be competent to the Committee to prescribe, detailed accounting procedures to be followed in the maintenance of the fund.

15.

Assistance from the Fund.

(a)

To encourage milk pouring members every year, the Committee shall select and sanction cash awards and citations to three members in this state who poured highest quantity with standard quality milk to the society;

(b)

To encourage milk pouring members and thereby, enhance their loyalty and patronage to the society, every year the Committee shall select and sanction cash awards and citation to the owners of the three non descriptive milch animals, three cross-breed cows and three buffaloes of milk pouring members which yield high quality of milk and high quantity of milk;

(c)

To encourage competitiveness among the members cattle show may be organised at the State level;

(d)

(i)

to provide support at the times of distress/exigencies which affects the dairying, an assistance of a sum of Rs.1,00,000/- (Rupees one lakh only) may be given to the family of the milk pouring member, who died, in fatal accident:

Provided that the family of the milk pouring member shall continue and improve the dairying activities hitherto, done by the member and pour milk to the society;

(ii)

In case of accident-

(a)

to provide support at times of distress / exigencies which affects the dairying, an assistance at a sum of Rs.1,00,000/- (Rupees one lakh only) may be given to the milk pouring member, who lost sight of both eyes or physical separation of or loss of ability to use both hands or both feet.

(b)

to provide support at times of distress / exigencies which affects dairying, an assistance of a sum of Rs.50,000/- (Rupees Fifty thousand only) may be given to the milk pouring member, who sustained physical separation of or loss of sight on one eye or loss of ability to use either one hand or one foot:

Provided that the family of the milk pouring member who suffered permanent total disability or permanent partial disability should continue and improve the dairying activities hitherto done by the member and pour milk to the society;

(e)

(i)

to provide assistance of a sum of Rs.5,000/- (Rupees Five thousand only) to two children, not exceeding 21 years of age for their education, of the milk pouring member who died in fatal accident or permanently disabled;

(ii)

to provide assistance of a sum of Rs.5,000/- (Rupees five thousand only) to a female child, above 21 years of age for her marriage, of the milk pouring member who died in a fatal accident or permanently disabled. In case, the female child whose age is below 18 years, the amount of Rs.5,000/- (Rupees Five thousand only) will be deposited in the bank upto the period on which the female child attains 21 years;

(f)

The committee shall decide the sanction of the quantum of assistance based on the availability of Fund and loyalty of milk pouring member.

16.

Eligibility for assistance and quantum of assistance.

- A subscriber who has paid the monthly subscription and whose subscription has not lapsed is eligible for the assistance from the fund.

Provided that the subscriber has poured milk of 120 litres in 300 days in the current year for full quantum of assistance:

Provided further that the quantum of assistance shall stand reduced proportionately to the number of liters poured and number of days poured as decided by the committee.

17.

Constitution of the Committee.

- The Committee shall consist of the following members namely:-

(a) The Commissioner for Milk Production and

Dairy Development

Chairman

(b) Additional Registrar / Deputy Milk

Commissioner (Co-operation)

Member Secretary

(c) General Manager (Finance) of Tamil Nadu

Co-operative Milk Producers' Federation Ltd.

Member

(d) Three General Managers of Union nominated by

the Commissioner

Member

(e) Three Deputy Registrars (Dairying) nominated

by the Commissioner

Members

Provided that the nomination of the General Manager of the union and Deputy Registrar (Dairying) by the Commissioner shall be on rotation basis, and the term of the nominated members of the Committee shall not exceed two years.

18.

Operational Modalities.

(a)

The subscription amount shall not be refunded ;

(b)

The Deputy Registrar (Dairying) shall collect the details of members who supplied highest quantity with standard quality of milk to the society in a year, and send them in Form No.-I, with certificate to the correctness of the data to the Committee. He shall maintain necessary details in his office;

(c)

The General Manager shall collect the details of owners of three non descriptive milch animals, three cross-bred cows and three buffaloes of milk pouring members both in respective of quality and quantity, and send them in Form No. II with certificate to the correctness of the data to the Committee. He shall maintain necessary details in his office;

(d)

Application with authenticated documents along with First Information Report and report of the Medical Board of the District for availing financial assistance to the family of pouring member who died in fatal accident under these rules may be submitted to the Chairman of the Committee in Form No.III, which shall be accompanied by a report by concerned Deputy Registrar (Dairying) in Form No.IV;

Explanation. - For the purpose of this sub rule, authenticated documents include First Information Report copy and post-mortem report.

(e)

Application with authenticated documents along with First Information Report and report of Medical Board of the district for availing financial assistance to the family of pouring member, for any claim for hospital expenses to the member whose loss of sight of both eyes or physical separation of or loss of ability to use both hands or both feet or loss of sight on one eye and physical separation of or loss of ability to use either one hand or one foot during accident under these rules may be submitted to the Chairman of the Committee in Form No.III, for the following category of expenses, subject

to the maximum amount decided by the committee.

(i)

Nursing expenses,

(ii)

Surgeon, Anesthetist, Medical Practitioner, Consultant, Specialist Fees;

(iii)

Anesthesia, Blood, Oxygen, Operation theatre charges, Surgical Appliances, Medicines and drugs, Diagnostic materials, X-ray, and similar expenses;

Note. - Application with authenticated documents should be accompanied by a report by concerned Deputy Registrar (Dairying) in Form No. IV;

(f)

(i)

The Deputy Registrar (Dairying) shall collect the details of the children of milk pouring member who died in the fatal accident or permanently disabled who seek to avail assistance, either for education or for marriage expenses or both and send them in Form No. V, with certificate to the correctness of the data to the committee, provided the applicant is eligible to avail assistance under rule 15(e) (i) and (ii).

(ii)

He shall maintain necessary details in his office;

(g)

The Committee may sanction financial assistance equally to the members of his family in the case of member who died in fatal accident.

Provided that the family of milk pouring member shall continue the milk producing activities hitherto done by the milk pouring member;

(h)

All the applications shall be scrutinized by the Committee. The Committee, after satisfying itself of the eligibility otherwise of the applicants, in accordance with provision of the rules, shall make specific recommendation. The Chairman of Committee may thereafter issue orders sanctioning the assistance and take appropriate action for complying with the recommendation of the Committee;

(i)

Financial assistance shall be provided from the date of issue of the orders sanctioning the assistance, unless or otherwise specified therein;

(j)

Financial assistance sanctioned under these rules is liable to be cancelled, if it is found at any time that the assistance was sanctioned on the basis of incorrect facts or that the financial assistance was obtained by suppression or misrepresentation of true facts:

Provided that before withdrawing or cancelling any assistance, the Committee shall give an opportunity to the beneficiary to represent his case against the proposed action;

19.

Annual Statement of Account.

- As soon as possible, after the close of each Co-operative year, the General Manager (Finance) of the Federation shall submit, statement of account of the fund to the committee showing the opening balance at the beginning of the year, amount deposited during the year, withdrawals if any made during the year, the total amount of interest credited at the end of the year, and the balance at the end of the Co-operative year.

20.

Audit.

- The accounts of the Fund shall be subjected to annual audit by approved Chartered Accountant and audit report shall be placed before the Committee by the Member-Secretary / Chairman.

21.

Arbitration.

- Any dispute regarding the payment of assistance from the fund shall be referred to the Deputy Registrar (Headquarters) whose decision shall be final in the matter.

22.

Dissolution of the Fund.

- If, at a future date, it is decided to wind up the Fund, the entire balance available in whatever form, shall be remitted back to the Government.

23.

Annual report on the working of the fund.

- As soon as or after the close of each Co-operative year, the Committee shall submit to the Commissioner, a report on the working of the Fund during the Co-operative year.

Form No. I

[See Rule 18 (b)]

Report of the Deputy Registrar (Dairying).....

To

The Chairman,

Peraringner Anna Centenary Co-operative

Milk Producers Welfare Fund,

Madhavaram Milk Colony,

Chennai-51.

Sir,

I certify that Thiru/Tmt/Selvi.....M.No.....son/daughter of Thirubeing member in.....milk producers co-operative society who has supplied highest quantity and quality of milk to the above society in the year.....

I also enclose the report received from the..... milk producers co-operative society certified by both Board / Special Officer and Secretary of the society.

Place:

Signature of the Deputy Registrar (Dairying)

Date:

Name and address with Office Seal

Form No. II

[(See Rule 18 (c)]

Report of the

General

Manager District Co-operative Milk Producers Union

To

The Chairman,

Peraringnar Anna Centenary Co-operative

Milk Producers Welfare Fund,

Madhavaram Milk Colony,

Chennai-600 051.

Sir,

I certify that Thiru/Tmt/Selvi.....Member No.....son/ daughter of Thiru.....being member in.....milk producers co-operative society, owner of the non descriptive milch animal / cross bred cow / buffalo of the milk pouring member which yield high quality of milk and high quantity of milk to the society for the year

I also enclose the report received from the..... milk producers co-operative society certified by the Board/ Special Officer of the society and area Extension Officer and Secretary of the society.

Place:

Signature of the General Manager

Date:

.....District Co-operative Milk Producers Union

Name and address with Office Seal

Form No. III

[(See Rule 18 (d)]

Application Form For Financial Assistance (For The Cases Of Fatal Accident / Permanent Total Disability Or Permanent Partial Disability)

To

The Deputy Registrar (Dairying)

.....

1.

Name of the Applicant in capital letters

:

2.

Age and date of birth

:

3.

Full Address

:

4.

In the case of family's dependant on the deceased Milk Pouring Member

:

(a) Name of deceased milk pouring member

:

(b) Name of the society in which the deceased member poured milk.

:

(c) Member No.

:

(d) Quantity of milk poured (in litres)

:

(e) Period on which the deceased milk pouring member poured milk

:

(f) Purpose for which the assistance is sought

:

(g) Document evidence

:

(i) Death Certificate

(ii) Legal Heir Certificate

(iii) Post- Mortem Report

(iv) FIR Copy

(v) NOC from other family members

5.

Name of the family member of deceased milk pouring member who now pours milk to the society

:

a. Quantity of Milk Supplied by him in the society

b. Period on which he pours milk

:

6.

I hereby certify that

(a) I continue to pour milk in the society.

(b) All the above particulars furnished by me

are true to the best of my knowledge

Date :

Place :

Signature of the Applicant

Form No. IV

[(See Rule 18 (d))]

Report of the Deputy Registrar (Dairying),.....

To

The Chairman,

Peraringnar Anna Centenary Co-operative

Milk Producers Welfare Fund,

Madhavaram Milk Colony,

Chennai-600 051.

I have made necessary enquiries regarding the facts furnished in the application form Thiru/Tmt.....family /dependent of the deceased/ permanent total disabled / permanent partial disabled of milk pouring member and submit the following report.

1. The applicant

comes under the assistance of fatal accident / permanent total disability/ permanent partial disability.

2. The applicant is the widow / widower/ son/

unmarried daughter / father/mother of the deceased / permanent total disabled / permanent partial disabled.

3. The age of the applicant as verified from the certificates of date of birth furnished by the applicant or other reliable records (to be specified).

4. Legal heir certificate

5. The details of expense incurred for hospitalization

6. The certificate furnished by the society that the member / dependent of the deceased / permanent total disabled / permanent partial disabled of the pouring member supplies milk to the society hitherto done by the milk pouring member.

Signature of the Secretary with seal of the Milk Producers Co-operative Society.

7. Certified that the particulars furnished by the applicant are correct

8. Other remarks if any

Place :

Date :

Signature of the Deputy Registrar (Dairying)

Name and address with Office seal.

Form No. V

[see rule 18 (f)]

Application Form For Education / Marriage Assistance

To

The Deputy Registrar (Dairying)

.....

1.

Name of the Applicant in capital letters

:

2.

Age and date of birth (proof for age should be enclosed).

:

3.

Full Address

:

4.

In the case of dependant of the deceased Milk
Pouring Member.

:

(a) Name of deceased milk pouring member.

:

(b) Name of the society in which the deceased
member poured milk.

:

(c) Member No.

:

(d) Quantity of milk poured (in litres)

:

(e) Period on which the deceased milk pouring
member poured milk.

:

(f) Purpose for which the assistance is sought

:

(g) Document evidence

:

(i) Death Certificate

(ii) Legal Heir Certificate

(iii) Post- Mortem Report

(iv) FIR Copy

(v) NOC from other family members

5.

Name of the family member of deceased milk
pouring member who now pours milk to the society.

:

a. Quantity of Milk Supplied by him in the
society.

:

b. Period on which he pours milk

:

6.

I hereby certify that

(a) My family member as mentioned in Sl. No. 5
continue to pour milk in the society

(b) All the above particulars furnished by me
are true to the best of my knowledge

Signature of the Applicant

Date :

Place :

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